

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC
OF SRI LANKA**

In the matter of an application in terms of
Section 331 of the Code of Criminal
(Procedure Act No. 15 of 1979).

Hon. Attorney General.
Democratic Socialist Republic of Sri
Lanka.

COMPLAINANT

Court of Appeal

Case No.CA/HCC/164-165/2024

HC-BADULLA-HC-36-2016

Vs.

1. Selva Dore Krishnakumar
Line No.1,
Haputhale Estate,
Haputhale.
2. Selva Dore Sivakumar
Line No.1,
Haputhale Estate,
Haputhale.

ACCUSED

AND NOW BETWEEN

1. Selva Dore Krishnakumar
Line No.1,
Haputhale Estate,
Haputhale.
Currently: Remand Prison, Badulla.
2. Selva Dore Sivakumar
Line No.1,
Haputhale Estate,
Haputhale. Accused/Appellant
Currently: Remand Prison, Badulla

ACCUSED-APPELLANTS

Vs.

Hon. Attorney General.
Democratic Socialist Republic of Sri
Lanka.

COMPLAINANT-RESPONDENT

Before: **A. Ranaraja J.**

&

Dr. Sumudu Premachandra J.

Counsel: Sandamal Rajapaksha for the Accused-Appellants.

Hiranjana Peiris, ASG for the State.

Accused-Appellant is produced via zoom platform by
the Prison Authorities.

Written Submissions: By the Accused-Appellants filed on 17/09/2025.
By the Respondents filed on 20/12/2024.

Argument On : 01/06/2026.

Judgement On : 03/07/2026.

Dr. Sumudu Premachandra J.

1] This criminal Appeal arises from a trial before the High Court of the Uva Province held at Badulla, where the State preferred indictments against two

Accused-Appellants for committing the offense of murder of Karuppan Pushparaj, on 24/07/2009, an offense punishable under Section 296 read with Section 32 (common intention), within the Jurisdiction of Badulla.

2] The Accused-Appellants pleaded not guilty, the case proceeded to trial, during which the prosecution produced documentary and oral evidence marked P1 to P6 and led the testimonies of nine witnesses. Following the prosecution's case, the Accused-Appellants gave statements from the dock, the defense concluded its case and on 07/06/2024, the learned High Court Judge delivered a judgement convicting both Accused-Appellants. The Accused-Appellants were convicted of the murder does not amount to culpable homicide under Section 297 read with Section 32 of the Penal Code. The trial court sentenced both Accused to 10 years of rigorous imprisonment with Rs. 5000 fine each. They now challenge the conviction and sentencing.

3] I consider the grounds of Appeal. The Appellants contend that the Learned High Court Judge failed to consider the core ingredients of the offense and failed to properly evaluate the evidence relating to the charges. Furthermore, the defense argues that the prosecution's evidence lacked credibility, contained contradictions, and failed to prove the case beyond a reasonable doubt, especially given that the defense's case created a reasonable doubt that went unconsidered. Finally, the Appellants assert that a definitive conclusion could not be reached based on the evidence and sentencing guidelines, and that they were severely prejudiced at the time of sentencing due to a lack of legal representation, which deprived them of the opportunity to make submissions in mitigation of their sentence. Since these grounds of Appeal are interwoven, those are considered together.

4] The learned counsel for the Appellants contended that 001, the lethal weapon, which was marked at the trial, was identified by PW2 as it had a black handle; however, PW2 had identified it as white in color at the trial, created a serious contradiction. Further, he said that there is no forensic value, as the bloodstains

of the knife, stains in the T shirt, were not sent to the Government analyst for proper examination. It diminished the value of evidence, thus, lacks the consistency of the prosecution witnesses. Further, the Statement of first Accused was recorded in Sinhala, despite the said Accused is identified as a Tamil speaker.

5] I now consider the merits of the case. PW1, Karupan Pradeep explained the stabbing as follows;

“උ: ඊට පසුව මමයි මගේ අයියායි දෙන්නාම එලියට ගියා මොනවද වෙන්තේ කියලා බලන්න.

ප්‍ර: එලියට කියන්නේ කොහේටද ගියේ?

උ: දොර ඇරගෙන එලියට ගියා.

ප්‍ර: ගියාට පසුව මොකද්ද වුනේ?

උ: ගියාට පසුව ස්වාමිණි, කෑ ගහගෙන සිටියා ස්වාමිණි. එක පාරටම කුමාර් ඇවිල්ලා අයියා පිටුපසින් බදා ගත්තා. ස්වාමිණි, ශාන්තා කියන කෙනා ඉනේ පිහියක් ගහගෙන ආවා. පිහිය එක පාරටම ඉනෙන් ඇදලා අරගෙන ඇත්තා ස්වාමිණි.

ප්‍ර: කාටද ඇත්තේ?

උ: පුෂ්පරාජ්ට ස්වාමිණි.

ප්‍ර: දැන් ඔය සිදුවීම තමා දැක්කාද?

උ: දැක්කා. දැක්ක ගමන් භය වෙලා එහෙමීම මම සිටියා. ඉන් පසුව තව අයියා කෙනෙකුට කතා කලා ස්වාමිණි.

ප්‍ර: කවුද ඔබ ඔය විදිහට කතා කල අනෙක් අයියා?

උ: සජී කුමාර්.

ප්‍ර: සජී කුමාර් කියන පුද්ගලයා ඔබ හඳුනන්නේ කොහොමද?

උ: ඔහු මගේ අයියා ස්වාමිණි.

ප්‍ර: සජී කුමාර් ඔබ කතා කලාට පසුව ඔය තැනට ආවද?

උ: ආවා ස්වාමිණි.

ප්‍ර: ඔහු ආවට පසුව මොකද්ද වුනේ?

- උ: ස්වාමිණි, මියගිය අයියා කිව්වා ශාන්තා මට පිහියෙන් ඇත්තා කිව්වා. මම අයියා අල්ල ගන්න ගියා. අනෙක් අයියා ශාන්තාව අල්ල ගන්න යන විට එයා පිහියෙන් වැනුවා ස්වාමිණි. පිහිය වැනුවට පසුව ඒ අයියාගේ අතේත් තුවාලයක් ඇති වුනා.
- ප්‍ර: කවුද පිහිය වැනුවේ?
- උ: ශාන්තා කියන පුද්ගලයා.
- ප්‍ර: ඔබ කිව්වා ඔබේ අයියා පුෂ්පරාජ් ඔබ සමඟ කතා කලා කිව්වා?
- උ: එහෙමයි.
- ප්‍ර: කතා කරලා ඔබ කිව්වා, අයියා කිව්වා කියලා ශාන්තා පිහියෙන් ඇත්තා කියලා?
- උ: ඔව් ස්වාමිණි.
- ප්‍ර: දැන් ඔය විදිහට ඔබේ සහෝදරයාට පිහියෙන් ඇත්තාට පසුව මෙම පුද්ගලයන් දෙදෙනා මොනවද කලේ?
- උ: මේ දෙදෙනා පිහියෙන් ඇතලා දිව්වා. අනෙක් අයියා පිටුපස දිව්වා අල්ලගන්න.
- ප්‍ර: පිටුපස දිව්වා කියලා අදහස් කරන්නේ සජී කුමාර් අයියාද?
- උ: එහෙමයි ස්වාමිණි.
- ප්‍ර: ඔබේ සහෝදරයාට මෙම පුද්ගලයන් කී පාරක් අනිත්වාද ඔබ දැක්කේ?
- උ: දෙපාරක් පිහියෙන් ඇත්තා ඒක දැක්කා මම.” [Emphasis is added]

6] This is clear and cogent evidence by an eye witness. When the direct evidence is produced by the prosecution with regard to the incident, the forensic verification on the knife and T shirt is not sine qua non for conviction.

7] Under the Section 134 of the Evidence Ordinance¹, single solitary witness is enough for conviction, if the evidence is reliable. The Courts should consider the quality over quantity, in Criminal Law, the Courts evaluate the weight and credibility of evidence, not its volume or scientific variety. It should be noted that

¹ Justice Jayasuriya in ***Sumansena V Attorney General*** [1999] 3 Sri L.R. at 137 observed that “In our law of evidence the salutary principle is enunciated that evidence must not be counted but weighed and the evidence of a single solitary witness if cogent and impressive could be acted upon by a court of law. Section 134 of the Evidence Ordinance sets out that no particular number of witnesses shall, in any case, be required for the proof of any fact”

reliable, unimpeachable eyewitness testimony constitutes direct evidence of a crime and that direct evidence is of dominance over the other evidence.

8] Forensic evidence is corroborative, used primarily to support weak or contested oral evidence. This needs corroboration as a safeguard to the direct evidence. As noted above, there is no need for corroboration, despite minor contradictions, the PW1's evidence stands strong and confirms by the evidence of PW2 and PW3.

9] The forensic verification becomes necessary if:

- The eyewitness, PW1's testimony contains major, irreconcilable contradictions, or;
- The visibility, identity, or presence of the witness at the scene is reasonably doubted and;
- The medical evidence completely contradicts the oral version of how the injury occurred.

10] In the case in hand, there are no such discrepancies. In the case **of Bhojraj v Sita Ram** [1935] AIR, 193 PC 60 at 62 Lord Roche drew the real test for accepting and rejecting a testimony of a witness based on testimonial trustworthiness stating that *"How consistent is the story with itself (consistency per se). How does it stand the test of cross-examination? (Stability under cross-examination) How far it fits in with the rest of the evidence and the circumstances of the case (inconsistency inter se)."* It is important to note that PW1 has maintained the same position in his testimony throughout the trial and the learned trial judge had believed the evidence. Moreover, the evidence of prosecution is supported and proved by the medical evidence.

11] When considering the contradictions and errors, I am guided with the case of **Karunartne v Attorney General** [2005] 2 Sri L R. 236, where Justice Jagath

Balapatabendi noted that “Where evidence is generally reliable, much importance should not be attached to the minor discrepancies and technical errors”. In this case following contradictions were marked;

1. එවිට ශාන්ත වටේ හිටිය හැමෝටම පිහියෙන් ඇත්තා. එවිට සභිකුමාර් අයියාට , අම්මා, බාප්පා වන වෛත්සලිංගම් ට තුවාල සිදුවුනා. (වි1 from PW1)

2. මීට පෙර ශාන්ත හෙවත් ක්‍රිස්න කුමාර් සමග කිසිදු අමනාපයක් නොතිබුණු බව (වි1 from PW2)

Omission

පොලුවලින් ගසද්දී (through PW8-Police witness)

12] These contradictions and omissions do not go to the root of the prosecution. I consider that the learned trial judge had considered the consistency of the prosecution’s version and held despite the long cross examination, their evidence is intact.

13] It is seen that the learned trial judge had considered the dock statements carefully and concluded those do not create any reasonable suspicion on the prosecution version. The 1st Accused starts the dock statement as "ස්වාමීනි, මල්ලිත් සමග තමයි ආරවුල තිබුනේ. ඔහුගේ අයියා සමග කිසිම ආරවුලක් තිබුනේ නැහැ. ඔහුගේ අයියා මැරුවා කියලා ඒ ගොල්ලෝ තමයි කියන්නේ ස්වාමීනි". This shows that there was an animosity between the party irrespective “අයියා” or “මල්ලි”. The mere assertion that the 1st Accused is handicapped cannot be treated to exonerate him from the charge when strong case was made by the prosecution.

14] Where the strong case is made by the prosecution, the Accused must create a doubt of the version of the prosecution. In **Seetin v The Queen** [1965] 68 NLR 316 at 322, Justice T. S. FERNANDO, held;

*“Where probable proof is brought of a statement of facts tending to criminate the accused, the absence of evidence tending to a contrary conclusion is to be considered though not alone entitled to much weight, because the burden of proof lies on the accuser to make out the whole case by substantive evidence. But when pretty stringent proof of circumstances is produced tending to support the charge, and it is apparent that the accused is so situated that he could offer evidence of all the facts and circumstances as they exist, and show, if such was the truth, that the suspicious circumstances can be accounted for consistently with his innocence and **he fails to offer such proof, the natural conclusion is that the proof, if produced, instead of rebutting, would tend to sustain the charge**”* [Emphasis is added]

15] Considering the nature of evidence, the learned trial judge has convicted both Accused under Section 297 of the Penal Code. it says;

*“297. Whoever commits **culpable homicide not amounting to murder** shall be punished with imprisonment of either description for a term which **may extend to twenty years**, and shall also be liable to fine, if the act by which the death is caused is done with the intention of causing death, or of **causing such bodily injury as is likely to cause death**; or with imprisonment of either description for a term which **may extend to ten years**, or with fine, or with both, if the act is done with the knowledge that it is likely to cause death, but without any intention to cause death, or to cause such bodily injury as is likely to cause death.”*

16] It is noted that the evidence presented by the prosecution establishes and justify the conclusion of the trial judge. **The King Vs. Bellana Vithanage Eddin** (41 NLR 345) Chief Justice Howard highlighted that it is the trial judge's duty to consider alternative findings of culpable homicide if a sudden fight is

supported by the record. Therefore, the final judgement was heavily aligned with the evidence, leaving no basis for Appellate intervention.

17] Lastly, the contention that the Accused were not represented by an Attorney At Law at the sentencing stage cannot be considered that the Accused were prejudiced by the sentence as the learned trial judge had considered the lesser sentence. Therefore, the Appellants' sentences of 10 years of rigorous imprisonment and Rs. 5,000 fines are reasonable, non-excessive, and fully compliant with the statutory parameters of Section 297 of the Penal Code for the offense of culpable homicide not amounting to murder, given the gravity of the offense and the evidence from a thorough trial.

18] On the above circumstances, I find that there is no merit in the Appeal hence I dismiss the Appeal and affirm the conviction and the sentence. However, sentence should be run from the date of conviction, that is 07/06/2024.

JUDGE OF THE COURT OF APPEAL

AMAL RANARAJA J.

I agree

JUDGE OF THE COURT OF APPEAL